

Private Forests Nationalization Act, 1957

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Private Forest Nationalization Act, 2013

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Amending Acts

1. Republic Strengthening and Certain Nepal Laws Amendment Act, 2066 2066.10.07

Act No. 18 of the year 2013

An Act to Nationalize Private Forests

Preamble: Whereas forests are an essential part of the national wealth, and to prevent the destruction of national wealth and to conserve, manage, and utilize forests in the best possible manner for the benefit of the country and the people, it is necessary to nationalize private forests; Therefore, His Majesty the King, on the advice of the Council of Ministers, has enacted and promulgated this Act. 1. Short Title, Extent, and Commencement: (1) This Act may be cited as the "Private Forest Nationalization Act, 2013".

(2) This Act shall come into force immediately throughout the Kingdom of Nepal. 2. Determination of Private Forest: (1) For the purposes of this Act, "private forest" shall be understood to mean all types of forests on land which, prior to the commencement of this Act, was either wholly or partially exempted from state revenue (Malpot) or land which a particular person has, by any means, acquired rights over and enjoyed, as well as the barren land within the boundaries of such forest. Provided that:

(a) Scattered trees on cultivated land, or fruit orchards and other trees located within a house compound or separately, shall not be deemed a forest.

(b) If a person has planted and nurtured trees through their own labor on land up to 25 Ropani in the valleys and hills, and up to 5 Bigha in the Terai, such trees shall not be deemed a forest.

(2) If any question arises whether any land falls within a private forest, or whether any private forest falls within any land, or what the boundary or area of such forest is, or whether it is a private forest or not, such matter shall be decided by an officer appointed by the Government of Nepal for that purpose.

(3) A person dissatisfied with the decision of the officer appointed under sub-section (2) may appeal to the Government of Nepal within thirty-five days. The right to file such an appeal is removed by the Republic Strengthening and Certain Nepal Laws Amendment Act, 2066. The right of the Forest Officer shall also remain preserved.

(4) After such an appeal is filed, the Government of Nepal shall, for the purpose of making a decision,

constitute a Tribunal chaired by a judge of the Supreme Court or a person qualified to be a judge, and appoint two other members.

The decision of such Tribunal shall be final.

(5) No court shall have the authority to hear any complaint or suit against any decision made pursuant to sub-section (2) or (4). 3. Nationalization of Private Forest: (1) From the date of commencement of this Act, the ownership of all private forests within the Kingdom of Nepal shall vest in the Government of Nepal.

(2) Any Act, title deed (sawal), charter (sanad), or any other document granting any person a monopoly over such forest shall be void from the date of commencement of this Act.

(3) The laws applicable to government forests shall, from the date of commencement of this Act, also apply to the forests that have vested in the Government of Nepal under sub-section (1). 4. Effect on Contracts Made by the Former Owner with Nationalized Forests: Contracts duly made by the former owner of a nationalized forest with the Government of Nepal shall, after the commencement of this Act, be deemed to be contracts made with the Government of Nepal itself. 5. No Claim for Compensation: No claim for compensation shall be made for the loss of any right in a private forest under this Act. 6. Power to Make Rules: The Government of Nepal may make rules for the purpose of implementing the objectives of this Act. 7. Power of the Government of Nepal to Remove Difficulties: If any difficulty arises in implementing the provisions of this Act, the Government of Nepal may, by notification in the Gazette, issue such orders as may be necessary to remove such difficulties, and every such order shall be deemed to be a part of this Act.